

TENTATIVE RULINGS

LAW & MOTION

DEPT C24

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting and then moving party is to telephone the clerk at (657)622-5224 with the status of all parties. If the moving party has submitted the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 10:30 a.m. on the day of the hearing. Generally, motions will not be continued or taken off calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

August 06, 2024
02:00 PM

If you want a transcript, you must provide your own court reporter

#	Case Name	Tentative
1	Rodriguez vs. Arthritis & Osteoporosis Medical Center, Inc. 20-01138157	Motion for Summary Judgment and/or Adjudication MP have sustained their initial, substantive burden and Plaintiff fails to sustain her burden to create a triable issue of material fact (the motion being unopposed), the unopposed motion is GRANTED. In the context of medical malpractice, “[w]hen a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” (Hanson v. Grode (1999) 76 Cal.App.4th 601, 607 [citing Munro v. Regents of Univ. of California (1989) 215 Cal.App.3d 977, 984-985].) Defendants provide the expert declaration of Dr. Fan who opines that “Defendants’ care and treatment rendered to

		David Rodriguez by GERALD Y. HO, M.D., LILY LIU, PA-C and ARTHRITIS & OSTEOPOROSIS MEDICAL CENTER, INC. complied with the applicable standard of care in the medical profession at all times and in all respects, including in 2018-2019. There was no medical evaluation or diagnosis that DR. GERALD HO or LILY LIU, PA-C overlooked or omitted.” Dr. Fan further declares, “It is my professional opinion to a reasonable degree of medical probability that no negligent/substandard act or omission on the part of GERALD Y. HO, M.D., Lily Liu, PA-C and ARTHRITIS & OSTEOPOROSIS MEDICAL CENTER, INC. causes or contributed to the death of David Rodriguez. Nothing that GERALD Y HO, M.D., LILY LIU, PA-C and ARTHRITIS & OSTEOPOROSIS, INC. did or failed to do contributed to or caused the death of the decedent.” The Court finds the medical records relied on by the expert to provide his opinions are properly before the Court pursuant to Garibay v. Hemmat (2008) 161 Cal.App.4th 735, 743. (ROA 122.) Therefore, Defendants sustained their initial, substantive burden. [CCP § 437c(p)(2).] Plaintiff did not file any opposition; and as such, fails to create a triable issue of material fact. Defendants to provide notice and proposed judgment.
2	Kepner vs. Oakmont Senior Living, LLC 22-01243539	1) Motion to Compel Further Responses to Special Interrogatories 2) Motion to Compel Further Responses to Special Interrogatories OFF CALENDAR – Notice of Settlement filed.
3	PTA Real Estate, LLC vs. Zito 22-01258334	1) Motion for Leave to Intervene 2) Case Management Conference

Anthony Zito's ("Anthony") Motion for Leave to Intervene is GRANTED.

The motion is brought pursuant to CCP §387 on the basis that Anthony claims a preemptive right and interest in the same real property transaction that is the subject of this action, and that adjudication of the parties' claims in his absence will irreparably impair, impede and damage his interest.

The Court has broad discretion to permit or deny intervention under CCP §387. (*Jade K. v. Viguri* (1989) 210 Cal.App.3d 1459, 1468.) Intervention may be mandatory or permissive.

The only prejudice Plaintiff argues is that Anthony waited until the action had been pending for two years before filing the motion. Plaintiff contends that, as a result, Plaintiff has already engaged in extensive discovery with Defendant Nada.

This argument does not demonstrate prejudice of the sort that justifies denial of the motion. The implied prejudice to Plaintiff is simply the prejudice that results from the fact of intervention rather than from any delay in seeking intervention. There is currently no trial date set and therefore, in the absence of any specific assertions of prejudice by Plaintiff, the court does not find that the delay in filing the motion makes it untimely.

As to Plaintiff's argument that Anthony's claims are without merit, the court does not adjudicate the merits of Anthony's claims in connection with this motion. Anthony has satisfied his burden in demonstrating that he has the requisite interest in this action (i.e., he has claims that involve asserted interests in the Property at issue herein), and the court finds that the reasons for intervention outweigh the concerns raised by Plaintiff in opposition.

		Accordingly, the motion is granted. Anthony is ordered to comply with CCP § 387(e) by separately filing the Complaint in Intervention within 10 days and serving a copy of the Court’s Minute Order, as set forth in the statute.
4	Satyam 1050 Orange Drive LLC vs. Sai Ram Investments, LLC 22-01296132	Motion for Leave to Intervene The court’s discretion on a motion for leave to sue is limited to whether the claim against the receiver must be asserted in the receivership proceeding or in a separate lawsuit. The court may not deny a motion for leave to sue on the ground that the claim lacks merit. (Jun v. Myers, supra at 124-125.) Because any recovery against the receiver is paid from the receivership estate and thus affects the final accounting, actions challenging the receiver's conduct during the receivership may be pursued until the receiver’s discharge. (Jun v. Myers, supra at 124.) After discharge the receiver is no longer a proper party to an action on his conduct in his official capacity. Here, the receiver has not been discharged and is therefore a proper party to a suit regarding his conduct during the receivership. The unopposed motion by third party G1 International Staffing, LLC (“Claimant”) for Leave to Sue Receiver or, in the Alternative, to Intervene is GRANTED. Claimant seeks leave to either sue the Receiver in an independent action or to file a complaint in intervention in this action against the Receiver for breach of contract and related claims arising out of the receivership. Claimant has not expressed any reason why a separate action would be preferable to a complaint in intervention,

		and it appears to the Court that the latter would be the most efficacious for all involved. Claimant shall separately file its Complaint in Intervention within 10 days and serve a copy of the Court's Minute Order in compliance with CCP §387(e).
5	Sharma vs. A.A. Construction 22-01274347	Motion to Set Aside/Vacate Default and Judgment The court finds that Plaintiff did not effectuate proper service of the original Complaint on Defendant. However, the First Amended Complaint was properly served on Defendant Jehovany by personal service on January 11, 2024. Defendant admits to receiving the First Amended Complaint and testified that this was the first time that he learned of the pending lawsuit. The court further finds that Defendant Jehovany was diligent in seeking relief after learning of the lawsuit. First, Defendant Jehovany attended the first and only hearing that took place after he was served with the First Amended Complaint. This hearing took place on March 11, 2024. (ROA 118.) Defendant Jehovany also testified that after learning of the First Amended Complaint he sought legal representation and thereafter filed this motion. Again, this motion was filed just one week after default judgment was entered. Given Defendant's diligence in defending the case once he learned of the case, the court finds Defendant's failure to timely file an answer excusable under the circumstances. (Austin v. Los Angeles Unified School Dist. (2016) 244 Cal.App.4th 918, 929 ["Within the context of section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error."].) Given the above and the well-established case law that favors resolution of cases on their merits, the Motion is GRANTED.

		Defendant Jehovany Barraza shall file the proposed Answer attached as Exhibit B to his declaration within 10 court days of the hearing. Defendant Jehovany Barraza to give notice.
7	Herrington vs. Hyundai Motor America 24-01376338	Motion to Compel Arbitration The Motion to Compel Arbitration brought by Defendant, Genesis Motor America, LLC (“GMA”) is DENIED. GMA argues that the Federal Arbitration Act (“FAA”) applies. Regardless of whether the FAA applies, “ ‘[s]tate law determines whether a non-signatory to an agreement containing an arbitration clause may compel arbitration.’ [Citations.]” (Yeh v. Superior Court of Contra Costa County (2023) 95 Cal.App.5th 264, 270.) Both the FAA and the California Arbitration Act require the existence of a valid arbitration agreement, before arbitration can be compelled. (See 9 U.S.C. §2 and C.C.P. §1281.2). “Under ‘both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.’ [Citation].” (Cruise v. Kroger Co. (2015) 233 Cal.App.4th 390, 396, emphasis in original (“Cruise”).) The court is to determine whether a valid arbitration agreement exists, and if so, whether the agreement encompasses the dispute at issue. (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 960-961, citing Howsam v. Dean Witter Reynolds, Inc. (2002) 537 U.S. 79, 84; Lifescan, Inc. v. Premier Diabetic Servs., Inc. (9th Cir. 2004) 363 F.3d 1010, 1012.) Parties moving to compel arbitration “may meet their initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature.” (Espejo v.

	Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060.) A petitioner is not required to authenticate an opposing party’s signature on an arbitration agreement as a preliminary matter in moving for arbitration or in the event the authenticity of the signature is not challenged. (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 846 (“Ruiz”).) “The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 164 (“Gamboa”).) The burden of production may shift in a three-step process. (Id. at p. 165.) “First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ [Citation.]” (Ibid.) This burden can be met by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature, or by setting forth the agreement’s provisions in the motion.” (Ibid.) “For this step, ‘it is not necessary to follow the normal procedures of document authentication.’ [Citation.]” (Ibid.) “If the moving party meets its prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.” (Ibid.) “If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation.]” (Gamboa, supra, 72 Cal.App.5th at p. 165.) This can be done by testifying under oath or declaring under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (Ibid.) “If the opposing party meets its burden of producing evidence, then in the second step, the moving party must
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establish with admissible evidence a valid arbitration agreement between the parties,” and “[t]he burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Gamboa, supra, 72 Cal.App.5th at pp. 165-166.) Once the opposing party produces evidence challenging the authenticity of the purported arbitration agreement, the moving party is required to rebut the challenge by establishing by a preponderance of the evidence that the agreement was valid. (Id. at p. 171.)

Plaintiff cites to Gamboa and Ruiz. In Gamboa, the Court of Appeal found that while the defendant employer may have met its burden on the first step by attaching a copy of the arbitration agreement purporting to bear plaintiff employee’s signature, the plaintiff “had met her burden on the second step by filing an opposing declaration, saying she did not recall the agreement and would not have signed it if she had been aware of it: ‘I do not remember these documents at all Had I been made aware of the existence of an arbitration agreement, and been explained its provisions, I would not have signed any such documents.’ ” (Gamboa, supra, 72 Cal.App.5th at p. 167.) The Court of Appeal concluded it was enough that plaintiff had challenged the authenticity of the agreement by saying under penalty of perjury that she did not remember it. (Id. at p. 168.) Thus, the Court of Appeal affirmed the order denying the defendant’s motion to compel arbitration and found the trial court did not err in finding that the defendant did not meet its burden to show a contract was formed as the defendant presented no evidence that plaintiff saw or signed the arbitration agreement because the trial court sustained plaintiff’s objections to the defendant’s evidence, namely a declaration by the defendant’s human resources director, which was inadmissible because it lacked foundational facts and personal knowledge, and because the arbitration agreement was never authenticated. (Id. at pp. 168-169.)

Similarly, in Ruiz, the Court of Appeal affirmed the trial court’s denial of the petition for arbitration on the ground that the defendant failed to establish that an arbitration agreement existed between the parties where the moving defendant did not prove by a preponderance of the evidence that plaintiff was the person who electronically signed the purported arbitration agreement as the declarant’s summary assertion that plaintiff was the person who signed the agreement, without any explanation as to how the declarant arrived at that conclusion or inferred the same, was insufficient, and left a “critical gap in the evidence supporting the petition.” (Ruiz, supra, 232 Cal.App.4th at p. 844.) More specifically, the plaintiff “averred he did not recall electronically signing the 2011 agreement,” and the Court of Appeal explained, “[t]hough Ruiz did not deny that the electronic signature on the 2011 agreement was his, he claimed he did not recall signing the 2011 agreement and would not have signed it had it been presented to him. In the face of Ruiz’s failure to recall signing the 2011 agreement, Moss Bros. had the burden of proving by a preponderance of the evidence that the electronic signature was authentic [citation], that is, it was what Moss Bros. claimed it was: ‘the act of’ Ruiz. [Citation.]” (Id. at pp. 844, 846.) The Court of Appeal found that the defendant did not present sufficient evidence, and thus, did not meet its evidentiary burden, to support a finding that the electronic signature on the 2011 agreement was the act of plaintiff. (Id. at pp. 842, 846.)

Here, while GMA is correct that it met its initial prima facie burden to produce evidence of a written agreement to arbitrate the controversy, GMA does not address Plaintiff’s challenge existence of the Warranty and arbitration provision contained therein.

Initially, the Warranty containing the arbitration upon which GMA relies is not signed by Plaintiff. Additionally, Plaintiff challenges the authenticity of the arbitration provision in the Warranty.

Similar to the plaintiffs in Gamboa and Ruiz, Plaintiff submits a declaration stating that “During the process of buying the vehicle, no one at the dealership (nor any other representative of Defendant) ever showed me an arbitration agreement, explained to me what an arbitration agreement was, or informed me that by buying the vehicle I was automatically agreeing to waive my Constitutional right to a jury if I ever brought claims against the manufacturer of the vehicle. I did not understand what arbitration was until it was explained to me by my attorney in connection with this case, because no representative of Defendant brought it to my attention in any way either during or before my purchase of the vehicle.” (ROA 50, Declaration of Norman Herrington, ¶ 3.) Plaintiff also states that “[n]o representative of Defendant reviewed or discussed the documents at Exhibits A and B to Mr. or Ms. Willette’s declaration, or any of their provisions with me, or told me that the agreement to arbitration was automatic by leasing the vehicle or receiving the benefits of its warranty, that the terms were negotiable, or that I could refuse to agree to the arbitration agreements, or that there was some opt-out procedure of the arbitration provision.” (Id., ¶ 4.) Plaintiff additionally states, “Had I been aware of the existence of such an arbitration provision and its significance, and had its provisions been explained to me, I would not have agreed to it. Had the opt-out procedure been explained to me, I would have opted out.” (Id., ¶ 5.) Plaintiff further states, “I never agreed to waive my Constitutional right to a jury trial in the event that I had a lemon law claim against Defendant in the future, which I had no way of anticipating at that time.” (Id., ¶ 6.)

The Court finds the foregoing declaration sufficient to challenge the existence of an agreement to arbitrate and require authentication. Plaintiff states that GMA did not show him an arbitration agreement during or before Plaintiff’s purchase of the vehicle and Plaintiff’s declaration indicates he was not aware of any arbitration agreement at the time he entered into the agreement to lease the car from the dealership, and had he been aware

of it, he would not have agreed to it, similar to the plaintiffs in Gamboa and Ruiz.

In turn, GMA must establish with admissible evidence that a valid arbitration agreement between the parties. In reply, GMA merely asserts that it met its prima facie burden, but does not authenticate the Warranty with the arbitration provision. Nor does GMA present any evidence in reply to prove an agreement to arbitrate exists by a preponderance of the evidence.

While GMA’s counsel, Jordan A. Willette, purports to attach a “true and correct copy” of the “California Motor Vehicle Lease Agreement” executed by Plaintiff when he leased the subject vehicle as Exhibit A, and a “true and correct copy” of the “Owner’s Handbook & Warranty Information manual that accompanied the sale of the Vehicle” as Exhibit B, counsel sets forth no facts indicating that counsel was present at the time Plaintiff leased the car, or establishing knowledge that the Warranty “accompanied the sale of the Vehicle.” (See ROA 30, Declaration of Jordan A. Willette, ¶¶ 2, 3.) Nor does Attorney Willette provide any information establishing the authenticity of either the Lease Agreement or the Warranty.

The Court SUSTAINS Objection Nos. 1 to 3 submitted by Plaintiff on July 24, 2024, as the testimony lacks personal knowledge and the exhibits have not been properly authenticated.

The Court DENIES Plaintiff’s request for judicial notice in its entirety.

Plaintiff’s request for a statement of decision is granted. (See *Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 970; see also Code Civ. Proc. § 1291.) This is the statement of decision.

Plaintiff to give notice.

